

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen Abrams-Downey	Team: Team # 6	CCRB Case #: 201311852	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/19/2013 9:22 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/19/2015	Precinct: 77		
Date/Time CV Reported Thu, 12/19/2013 9:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 12/19/2013 9:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Alejandro Valderrama	23435	953512	077 PCT
2. POM Jefferson Garcia	20400	953832	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Alejandro Valderrama	Abuse: PO Alejandro Valderrama stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Jefferson Garcia	Abuse: PO Jefferson Garcia stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Alejandro Valderrama	Abuse: PO Alejandro Valderrama threatened to issue summons to § 87(2)(b) and § 87(2)(b)	C . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 19, 2013, § 87(2)(b) filed this complaint with the CCRB via the call processing system. On December 19, 2013, § 87(2)(b) and § 87(2)(b) were in front of § 87(2)(b) in Brooklyn, when they encountered PO Jefferson Garcia and PO Alejandro Valderrama, both of Patrol Borough Brooklyn North. The following allegations resulted.

- **Allegation A: Abuse of Authority – PO Alejandro Valderrama stopped § 87(2)(b) and § 87(2)(b)**
- **Allegation B: Abuse of Authority – PO Jefferson Garcia stopped § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegations A and B** be closed as **exonerated**.
- **Allegation C: Abuse of Authority – PO Alejandro Valderrama threatened to issue a summons to § 87(2)(b) and § 87(2)(b)**
§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **exonerated**.
- § 87(4-b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

This case was reassigned from Inv. Zev Levavi to the undersigned on October 3, 2014.

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of incident, is a § 87(2)(b) black male with black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on January 7, 2014 (Encl. 8A-B). At approximately 9:22 p.m. on December 19, 2013, § 87(2)(b) was talking to an individual, identified by the investigation as § 87(2)(b) in front of § 87(2)(b)'s building, located at § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) stood approximately twenty feet apart, on either side of the front door to § 87(2)(b). There was room for residents to walk between them in order

to enter and exit the building. § 87(2)(b) and § 87(2)(b) were speaking at a conversational volume and they did not exchange any objects.

§ 87(2)(b) and § 87(2)(b) were speaking for approximately twenty minutes when they observed a marked police van drive by. As the van passed them, it slowed and § 87(2)(b) observed the driver, identified by the investigation as PO Alejandro Valderrama, peer through the window at them. The van proceeded past § 87(2)(b) but came back approximately four minutes later and double parked in front of the building. PO Valderrama and another uniformed police officer, identified as PO Jefferson Garcia, exited the van and approached § 87(2)(b) and § 87(2)(b).

PO Valderrama asked § 87(2)(b) and § 87(2)(b) if they lived at the address. § 87(2)(b) replied that § 87(2)(b) lived there, but he did not. PO Valderrama then asked if they had identification on them, and § 87(2)(b) and § 87(2)(b) provided their documents to him. PO Valderrama looked at the identification for a few seconds and then informed § 87(2)(b) and § 87(2)(b) that he needed to run a check to make sure they were real. PO Valderrama walked to the van and made a call on his cell phone. PO Garcia remained behind with § 87(2)(b) and § 87(2)(b). When PO Valderrama walked away, § 87(2)(b) asked PO Garcia what his partner was doing. PO Garcia informed § 87(2)(b) that PO Valderrama was running a warrant check on their identification.

PO Valderrama returned and gave the identification to § 87(2)(b) and § 87(2)(b). PO Valderrama told them that he could issue them a summons for standing in the doorway of the building. § 87(2)(b) questioned the officer and said that he and § 87(2)(b) were standing inside a gated area. PO Valderrama then said that he was giving them a warning, but that he could issue them a summons. § 87(2)(b) told the officers that they could not issue them a summons because he lived there. The officers then returned to their vehicle and drove away. Neither § 87(2)(b) nor § 87(2)(b) were issued summons or arrested as a result of the incident.

Attempts to § 87(2)(b)

In his CCRB statement, § 87(2)(b) referred to the other man present for this incident only as “§ 87(2)(b)” and provided his home address as § 87(2)(b) Brooklyn, NY 11216. A Lexis Nexis search confirmed that § 87(2)(b) lives at this address. This search did not provide any phone numbers for § 87(2)(b). Two letters were sent to § 87(2)(b) on January 24, 2014 and March 21, 2014. These letters were not returned to the CCRB by the US Postal Service.

NYPD Statement(s):

Subject Officer: PO ALEJANDRO VALDERRAMA

- PO Valderrama, § 87(2)(b) old at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- PO Valderrama worked from 7:30 p.m. on December 19, 2013 until 4:05 a.m. the following day. He was assigned to Impact Auto with PO Jefferson Garcia. PO Valderrama was in uniform and assigned to a marked police van, number 8832.

Memo Book

PO Valderrama did not prepare any memo book entries for this incident. At 9:00 p.m., PO Valderrama responded to a possible trespassing at § 87(2)(b). At 10:13 p.m., PO

Valderrama responded to a reported crime at § 87(2)(b). This incident was unfounded at 10:19 p.m. (Encl. 9B-F).

CCRB Testimony

PO Alejandro Valderrama was interviewed at the CCRB on October 14, 2014 (Encl. 9G-H). PO Valderrama did not have any recollection of this incident. He did not recall the incident when provided a brief overview of the events. He did not recognize § 87(2)(b) when shown his photograph from his driver's license. PO Valderrama did not have any independent recollection of the incident mentioned his memo book at § 87(2)(b). PO Valderrama did not recall threatening to issue summonses to any individuals at the time of the incident.

Subject Officer: PO JEFFERSON GARCIA

- *PO Garcia, § 87(2)(b) at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes.*
- *PO Garcia worked the same tour and assignment as PO Alejandro Valderrama.*

Memo Book

PO Garcia did not prepare any memo book entries for this incident. At 9:00 p.m., he received a report of a trespassing at § 87(2)(b). He arrived at this location at 9:08 p.m. and the incident was unfounded at 9:09 p.m. At 10:13 p.m., he received a radio run that two individuals were fighting at § 87(2)(b). He arrived at the incident location at 10:18 p.m. The incident was unfounded at 10:19 p.m. (Encl. 10B-F).

CCRB Testimony

PO Jefferson Garcia was interviewed at the CCRB on October 24, 2014 (Encl. 10G-H). PO Garcia did not have any recollection of this incident. He still did not recall the incident when prompted in the same manner as PO Valderrama.

MISD

There were no searches conducted for § 87(2)(b)'s name, birth date, or address (Encl. 15A).

Status of Civil Proceedings

- A request for any notices of claim regarding was placed to the Office of the Comptroller on November 10, 2014. To date, no response has been received.

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] § 87(2)(b)
§ 87(2)(b)

Civilian(s) CCRB History

- § 87(2)(b) has filed the following CCRB complaints: § 87(2)(b)
§ 87(2)(b) and § 87(2)(b)
- This is the first CCRB complaint filed on behalf of § 87(2)(b) (Encl. 5A).

Subject Officer(s) CCRB History

- PO Valderrama has been a member of the service for two years and there are no substantiated CCRB allegations against him (Encl. 2A).
- PO Garcia has been a member of the service for one year and there are no substantiated CCRB allegations against him. This is the first CCRB allegation against him (Encl. 3A).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) described the officer who threatened to issue him a summons as a 32 year old, 6'0" tall, Hispanic male with dark hair and a short haircut. § 87(2)(b) described the second subject officer as a 28 year old, 6'0" tall, Hispanic male with a light skin tone, a slim build, and glasses. Both officers were in uniform and driving a marked police van. PO Alejandro Valderrama and PO Jefferson Garcia were both assigned to Impact Auto in the 77th Precinct at the time of the incident. According to their memo books, PO Valderrama and PO Garcia responded to one incident at § 87(2)(b) at 9:00 p.m. and another at § 87(2)(b) at 10:13 p.m. Both of these incident locations are within approximately five blocks of § 87(2)(b) where § 87(2)(b) alleged that this incident took place.

PO Valderrama is a § 87(2)(b), § 87(2)(b) Hispanic male with black hair and brown eyes. PO Garcia is a § 87(2)(b) Hispanic male with glasses, black hair, and brown eyes. § 87(2)(g) The officers were assigned to a marked police van at the time of the incident. On November 3, 2014, § 87(2)(b) came to the CCRB to view a photo array. During this photo viewing, § 87(2)(b) selected two possible officers, including, PO Valderrama, as the officer who threatened to issue him and § 87(2)(b) a summons. § 87(2)(b) also chose two possible officers, including PO Garcia, as the other subject officer.

§ 87(2)(g)
§ 87(2)(b)
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§ 87(2)(b)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – PO Alejandro Valderrama stopped § 87(2)(b) and

§ 87(2)(b)

Allegation B: Abuse of Authority – PO Jefferson Garcia stopped § 87(2)(b) and

§ 87(2)(b)

Allegation C: Abuse of Authority – PO Alejandro Valderrama threatened to issue a summons to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Valderrama and PO Garcia approached him and § 87(2)(b) while they were in front of § 87(2)(b)'s building, at § 87(2)(b) in Brooklyn. § 87(2)(b) claimed the two were standing twenty feet apart and speaking in a conversational tone for twenty minutes. He stated that they were not blocking the entrance to the building. PO Valderrama asked § 87(2)(b) and § 87(2)(b) if they lived in the building and then for their identification, which they provided, and ran a warrant check. According to § 87(2)(b)'s testimony, PO Valderrama then returned their documentation and told § 87(2)(b) and § 87(2)(b) that he could have issued them a summons for standing in front of the building. The officers left without issuing any summonses or making any arrests.

Neither PO Valderrama nor PO Garcia had any recollection of stopping § 87(2)(b) and § 87(2)(b) on the date of this incident. PO Valderrama did not recall threatening to issue any summonses on the date of the incident and PO Garcia did not recall hearing his partner make this statement.

§ 87(2)(g)
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[Redacted]
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[Redacted]
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New York State Penal Law section 240.20 states that a person is guilty of disorderly conduct when he or she obstructs vehicular or pedestrian traffic (Encl. 1A).

§ 87(2)(g)
[Redacted]
[Redacted]
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[Redacted]
Therefore, it is recommended that **Allegations A, B, and C** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)
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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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